
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager *TJB*
DATE: February 9, 2022
SUBJECT: Professional Services Agreement between the City of Cheyenne and Veolia ES Technical Solutions, LLC, for the Hazardous Waste Disposal Services project

Two (2) Responsive Proposals were submitted under Request for Proposal (RFP) #4-22, for the Hazardous Waste Disposal Services Project.

The responsive proposals were received from:

1. AET Environmental. Denver, CO.
2. Veolia ES Technical Solutions, LLC. Henderson, CO

One vendor listed below, failed to Acknowledge receipt of the One (1) issued Addendum, therefore their proposal was not scored.

1. Clean Harbors Environmental Services, Inc. Norwell, MA. **(NOT EVALUATED)**

Upon review of the two (2) proposals by the evaluation panel (consisting of 3 members), the evaluation panel has recommended acceptance of the proposal submitted by Veolia ES Technical Solutions, LLC, for a project award amount not-to-exceed \$200,000.00. This Agreement is based on actual quantities disposed, and is billed in accordance with the Fee Schedule attached as Exhibit A, to the Professional Services Agreement. If future Contract renewals are executed after the original term of the Agreement ends, additional funds may need to be added as well.

Basis for award was based on a Qualifications based review and scoring of proposals. Veolia ES Technical Solutions, LLC, submitted the highest scoring proposal, therefore their sealed pricing envelope was opened & negotiated.

Funding: 023-14-1423-43-21301 (Solid Waste Fund / Professional Services)

\$200,000.00

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
HAZARDOUS WASTE DISPOSAL SERVICES

This Professional Services Agreement ("Agreement") is made and entered into by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Veolia ES Technical Solutions, LLC, located at 9131 E. 96th Ave, Henderson, Colorado 80640 ("Consultant"). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services for the Hazardous Waste Disposal Services project, in accordance with City of Cheyenne Request for Proposal (RFP) #4-22, incorporated herein by reference, and the Consultant's submitted proposal, incorporated herein by reference.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed by January 31, 2023.

3. COMPENSATION

This is a unit price, not-to-exceed Agreement. The City shall pay for actual services rendered. In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of Two Hundred Thousand Dollars (\$200,000.00) as stated in Exhibit A, Fee Schedule.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. **DRUG-FREE WORKPLACE**

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. **INDEMNIFICATION/HOLD HARMLESS**

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph. Consultant's obligation to indemnify the City shall not extend to any loss or damage of any kind or nature, including death or injury resulting therefrom, caused by the negligence of the City or anyone for whose acts the City may be liable. Neither party shall be liable to the other for consequential damages, including lost profits or loss of use.

8. **INSURANCE REQUIREMENTS**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of two (2) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION

The term of this Agreement shall be from date of execution to **January 31, 2023**. The Agreement may be extended for Two (2) possible, One (1) Year extensions beyond that period. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. **ADDITIONAL REMEDIES**

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. **GOVERNING LAW, JURISDICTION AND VENUE**

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. **GOVERNMENTAL IMMUNITY**

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. **MONITORING ACTIVITIES**

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited

- to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.
20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT
All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.
21. NON-DISCRIMINATION
The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.
22. FORCE MAJEURE.
The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.
23. PROFESSIONAL REGISTRATION
The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.
24. ENTIRETY OF AGREEMENT
This Agreement consisting of eight (8) pages, Exhibit A, Fee Schedule, consisting of five (5) pages, Request for Proposal RFP 4-22, consisting of sixteen (16) pages, Addendum One (1), consisting of thirteen (13) pages, and the Consultant's submitted proposal, consisting of thirty-nine (39) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

25. **HAZARDOUS WASTE ENVIRONMENTAL PROVISIONS.** In addition to the terms and conditions contained in the Agreement between the parties, if the Services involve the transportation and disposal of hazardous waste, the following environmental provisions shall also apply:

A. **DEFINITIONS.** The following terms used in this Agreement shall have the meanings set forth below:

- i. "Profile Sheet" means a standard Waste Profile Sheet executed by CITY.
- ii. "Services" means analytical, collection, management, treatment, remediation, transportation, disposal and recycling services and such other services which CONSULTANT may perform from time to time with respect to CITY's waste materials.
- iii. "Waste Materials" shall mean any chemical, substance or material designated or regulated as a "hazardous material," "hazardous waste," "toxic substance" or any similar designation (including petroleum products) by any national, federal, state, provincial, or local government (including any agency, authority, department, instrumentality or other subdivision of the foregoing) having or asserting environmental regulatory jurisdiction with respect to the substance or material generated pursuant to 40 CFR 260.10.
- iv. "Universal Wastes" means those wastes defined in 40 CFR §273.9.
- v. "Facility" means a storage, treatment and/or disposal facility owned or audited and approved by CONSULTANT, and which is permitted to accept waste materials under applicable laws and regulations.

B. CITY warrants that the Waste Materials in the Profile Sheet will contain a true and correct description of CITY's Waste Material and that such Waste Material will conform to this description. If CITY's Waste Materials do not conform to the descriptions and specifications stated in the corresponding Profile Sheet, CONSULTANT and CITY shall, in good faith, attempt to amend the Profile Sheet and any other pertinent documents and/or correct any improper containerization, marking or labeling to enable CONSULTANT to accept such non-conforming Waste Materials at a disposal Facility. If the parties cannot, within a reasonable time after CONSULTANT notifies CITY the Waste Materials are non-conforming, resolve the same as set forth above, CITY shall make prompt arrangements for the removal of such non-conforming Waste Materials from the Facility at which they are located to another lawful place of storage or disposal. CITY agrees to pay CONSULTANT its reasonable expenses and charges incurred with respect to CITY's non-conforming Waste Materials. In the event CONSULTANT performs services on premises owned or controlled by CITY, CITY will provide CONSULTANT with a safe workplace, and if CONSULTANT requests that work areas be secured, CITY will be solely responsible for securing such work areas and for preventing anyone other than the designated personnel from entering the designated work areas.

In the case of Universal Wastes, CITY must provide an accurate piece count for each of the items being shipped to the CONSULTANT (lamps, bulbs, monitors, etc.). In the absence of the piece count on shipping documents, the piece count made by CONSULTANT at the receiving Facility shall be conclusive and final.

C. With respect to any Waste Materials being shipped to a third party facility for disposal, and notwithstanding anything to the contrary in this Agreement, CONSULTANT's aggregate liability arising out of services provided hereunder, other than transportation services provided by CONSULTANT or storage, treatment and/or disposal services provided by CONSULTANT at CONSULTANT's locations, shall not exceed the greater of the aggregate fees paid in any calendar year hereunder or one million dollars (\$ 1,000,000).

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kristina F. Jones, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____

EXHIBIT A - FEE SCHEDULE



November 19, 2021

City of Cheyenne
Purchasing, Attn: TJ Barttelbort
2101 O'Neil Avenue, Rm. 309
Cheyenne, WY 82001
(307) 773-1045

RE: Price Proposal RFP (#4-22)

Dear TJ:

Veolia ES Technical Solutions, L.L.C. (VESTS) is pleased to submit an itemized price proposal for the proper management, transportation and disposal of City of Cheyenne's hazardous materials. Based upon our understanding of the scope of work as presented, VESTS proposes the following pricing:



PRICE PROPOSAL FORMAT

1. COST OF WORK

Household Hazardous Waste (HHW) Disposal Fee Schedule			
Line Item #	Line Item Description	Unit Of Measure	Cost
Labor			
1	Chemist (time charged portal to portal)	HR	\$ 0.00
-	Mobilization:	-	-
2	Fee for one day events only	EA	\$
-	Transportation:	-	-
3	Dedicated Trip	EA	\$ 307.00
4	Stop Fee (Milk Run)	EA	\$ 154.00
-	Add:	-	-
5	1-2 Drums	EA	\$ 30.00
6	3-5 Drums	EA	\$ 30.00
7	6-10 Drums	EA	\$ 30.00
8	11-20 Drums	EA	\$ 30.00
9	20-40 Drums	EA	\$ 30.00
10	>40 Drums	EA	\$ 30.00
11	1-4 Cubic Yard Boxes	EA	\$ 120.00
12	5-10 Cubic Yard Boxes	EA	\$ 120.00
13	>10 Cubic Yard Boxes	EA	\$ 120.00

Disposal of Lab Packed Wastes			
14	Flammable Solids for incineration	CU YD BOX	\$ 645.00
15	Aerosols for incineration	55 GAL DRUM	\$ 184.00
16	Pesticides/Herbicides for incineration	55 GAL DRUM	\$ 264.00
17	Corrosives for aqueous treatment	55 GAL DRUM	\$ 264.00
18	Inorganic salts for aqueous treatment	55 GAL DRUM	\$ 264.00
19	PCB Contaminated waste for incineration	30 GAL DRUM	\$ 382.00 per 30 gal
20	30-gallon drum for incineration	16 GAL DRUM	\$ 252.00
21	5-gallon pail of lab pack, all treatment types	5 GAL PAIL	\$ 76.00
22	Propane cylinders	Each	\$ 19.25
23	All other cylinders negotiated on a case by case basis	MQ / 5 GAL PAIL	\$ N/A
Disposal of bulk drummed wastes			
24	Oil Based Paint (A21) Flammable	55 GAL DRUM	\$ 116.50

25	Liquids (FB1)	55 GAL DRUM	\$ 89.75
26	Lean Waters Suitable for Incineration (A22K)	55 GAL DRUM	\$ 194.75
27	Halogenated Organic Solvents (A40)	55 GAL DRUM	\$194.75
28	Non-RCRA Coolants (B34)	55 GAL DRUM	\$ 160.00
29	Non-hazardous Organic Solutions for Aqueous Treatment(B35)	55 GAL DRUM	\$ 160.00

30	Pesticide Liquids (D90)	55 GAL DRUM	\$ 340.00
31	Pesticide Solids (O92)	55 GAL DRUM	\$ 382.00

Supplies			
32	55-gallon metal open head drum	EA	\$52.50
33	55-gallon metal closed head drum	EA	\$ 52.50
34	55-gallon poly open head drum	EA	\$ 55.50
35	55-gallon poly closed head drum	EA	\$ 55.50
36	30-gallon metal open head drum	EA	\$ 79.75
37	30-gallon metal closed head drum	EA	\$79.75
38	30-gallon poly open head drum	EA	\$61.50
39	30-gallon poly closed head drum	EA	\$61.50
40	16-gallon poly open head drum	EA	\$ 37.00
41	5-gallon metal open head drum (X-rated)	EA	\$24.50
42	5-gallon poly open head drum	EA	\$ 12.50
43	Cubic yard box, liner, pallet and nails	EA	\$ 79.75
44	Vermiculite	EA	\$ 43.00
45	Speedi Dry	EA	\$18.50
46	Poly Sheeting	EA	\$43.00

Paperwork Preparation Fees:			
47	0-5 pieces	LS	No charge
48	6-10 pieces	LS	\$29.00
49	11-20 pieces	LS	\$ 57.00
50	21 pieces or more	LS	\$ 71.00

VEOLIA NORTH AMERICA
tel +1 303 289 4827



This pricing observes the following general terms and conditions:

1. This is an estimate only. Actual costs are contingent upon total material removed, freight and manpower hours.
2. Work will be performed under the terms and conditions of the VEOLIA Services Agreement entered into between the parties.
3. Proposal is valid for 30 days from date of issuance.
4. Material conforms to the Waste Information Profile (WIP) specifications.
5. Veolia must receive a signed quotation prior to shipment of waste.
6. Containers are DOT approved. Any containers ordered but not quoted will be charged to the customer at cost plus 25%.
7. Veolia or an approved subcontractor will provide transportation of customer containers after waste has been approved.
8. A fixed Energy and Security Surcharge (ESS) of 7% will be applied to the total invoice.
9. Material is subject to additional charges if the waste or packaging does not conform to the listed terms and conditions. Veolia's Customer Service Representative will issue notification and a quotation if additional charges are beyond those specified.
10. A fee of \$200.00 per drum will be assessed for each drum that requires over-packing at the time of pickup or upon receipt at the facility (TSDF).
11. A \$50.00 surcharge for customer over-packed drums will be assessed.
12. Fee for partial or full load rejection: \$500.00 per occurrence
13. Loads that need to be returned to generator will be quoted an additional return transportation charge at the time of occurrence.
14. Demurrage: allowed loading or unloading time is 1-1/2 hours. Excess time is charged at \$85.00 per hour, with a minimum of one-hour charge.
15. Unless provided with a valid certificate of exemption or other evidence that items are not taxable, Veolia will invoice Customer for all applicable Local, State, and Federal taxes.
16. For alternate drum sizes, the following odd size container charges will apply:

Container Size	Price as % of 55 GL Drum
220 GL/ Cubic Yard Box	400%
110 GL	300%
85 GL	175%
55 GL	100%
30 GL	90%
20 GL	80%
15 GL	70%
10 GL	60%
5 GL	50%

This quotation includes the following services:

- Proper labeling, according to state and federal regulations.
- Completion of associated documentation, manifests and shipping documents.
- Ultimate disposal at a customer approved Licensed Class I-A Secure Chemical Landfill, Incinerator or Chemical Treatment Facility.

All work performed will be in strict compliance with all federal, state and local regulations and laws. Your company must also comply with all applicable laws and regulations pertaining to generators of hazardous waste. VEOLIA will not accept improperly identified or unidentified materials.

While Veolia would like to respond to the City of Cheyenne (City) with an unconditional bid response to the above Request for Proposal (RFP), there are some areas of the terms provided in the RFP relative to subsequent environmental service work that are of concern to Veolia. Having carefully reviewed the technical requirements of the solicitation and potential scope of work, and based on certain contractual concepts under which Veolia normally performs its work, and the work described in the solicitation, it is important to note that Veolia's proposal assumes the execution of a mutually agreeable contract consistent with those concepts, and notwithstanding any terms of the procurement to the contrary, the general terms and conditions that will govern the legal and business relationship between Veolia and the City are subject to negotiation and mutual agreement by the parties. Contractual provisions which often require discussion and further agreement include warranties, indemnities, insurance, environmental liability, ownership of wastes, consequential damages, contractual limits of liability, remedies for breach and termination. We do not believe that these matters should present any serious obstacles to the negotiation of a subsequent contract, and we are prepared to meet with you to discuss them upon award and at your convenience